

## 22STCV21977 22STCV21977

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Case Number: 22STCV21977 Hearing Date: July 31, 2026 Dept: 414

22STCV21977 Marc Alan Corbin, et al. v. 720 Normandie,

LP et al.

Friday,

July 31, 2026

[TENTATIVE]

ORDER GRANTING PLAINTIFFS' JOINT MOTION TO COMPEL DEFENDANT CITYWIDE PROPERTY MANAGEMENT AND CONSULTING, INC. RESPONSES TO FORM INTERROGATORIES, SET ONE AND FOR MONETARY SANCTIONS (9918)

[TENTATIVE]

ORDER GRANTING PLAINTIFFS' JOINT MOTION TO COMPEL DEFENDANT CITYWIDE PROPERTY MANAGEMENT AND CONSULTING, INC. RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE AND REQUEST FOR MONETARY SANCTIONS (6630)

[TENTATIVE]

ORDER GRANTING PLAINTIFFS' JOINT MOTION TO COMPEL DEFENDANT CITYWIDE PROPERTY MANAGEMENT AND CONSULTING, INC. RESPONSES TO DOCUMENTS SET TWO AND THREE REQUEST FOR MONETARY SANCTIONS; (1557)

### I. BACKGROUND

The

first amended complaint asserts claims arising from alleged uninhabitable conditions on property owned, managed, or controlled by Defendants. Plaintiffs allege eight causes of action arising from Defendants' alleged failure to remedy the conditions. Plaintiffs substituted themselves in place of prior

counsel. (Subst. 12.29.25.)

## II. DISCUSSION

Plaintiffs

served the following discovery on Defendant:

### DISCOVERY

#### SERVED

Form

Interrogatories, Set One

12/7/23

Request

for Production of Documents, Set One

12/20/23

Request

for Production of Documents, Set Two

8/14/25

Request

for Production of Documents, Set Three

9/11/25

All motions were filed on May 20, 2026.

A.

Form Interrogatories

A

motion to compel further responses to form interrogatories is proper where the requesting party believes the responses are evasive and incomplete, that an objection is without merit, or an exercise of the option to produce documents

is unwarranted. (Code Civ. Proc., sections 2030.300 subd. (a).)

There is no evidence Defendant served verified responses on January 19, 2024. (Prince Decl., ¶ 4, Ex. A.) Although the responses are dated January 19, 2024, they are not accompanied by a proof of service. (Prince Decl., Ex. 1.) Moreover, the responses were not verified at that time. The verification Defendant now relies upon was signed on July 17, 2026, after Plaintiffs filed the present motion.

Defendant also cannot establish that it served the responses by email on Plaintiffs' former counsel, as claimed. According to Defendant, it lost all email records predating April 17, 2025, as a result of a cyberattack. (Prince Decl., fn. 1.)

There is no evidence that verified responses were ever served on Plaintiffs' counsel. Because unverified discovery responses are "tantamount to no responses at all," Defendant has failed to demonstrate that it timely served code-compliant responses. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.) Accordingly, this is not a motion to compel further responses but to demand initial verified responses. The motion is GRANTED.

B.

Request for Production of Documents

A motion to compel further responses to a document request is proper where the requesting party believes the statement of compliance is incomplete, or a representation of inability to comply is inadequate, incomplete, or evasive and/or an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310.)

Set  
One

Plaintiffs

contend Defendant never responded. Defendant provides a copy of responses to Set One purportedly served on February 14, 2024. However, a proof of service is not attached. (Prince decl., Ex. 1.22.) Additionally, the responses were not verified until July 17, 2026, after Plaintiffs filed this motion.

(Prince decl., Ex. 1.23.) Defendant again contends it is unable to show proof that it served responses by email to prior counsel because of the cyber attack. (Prince decl., fn 1.)

As

there is no evidence that Defendant ever served verified responses, the motion is GRANTED.

Sets

Two and Three

Defendant

served responses to Set Two on October 29, 2025, which Defendant contends was the agreed upon deadline. (Prince decl., ¶ 27.) Defendant continued to meet and confer with Plaintiffs' then counsel, but no further requests to meet and confer were made after the Court vacated the IDC. (Prince decl., ¶ 19, 23.)

Defendant

did not provide any proof of service of the October responses to sets two and three although Defendant contends responses were served on October 29, 2025. Additionally, there is no evidence that Plaintiffs' former counsel agreed that Defendant's deadline to respond was October 29, 2025. (Prince, decl. Ex. 7). Rather, Plaintiffs' former counsel gave an October 24, 2025, deadline. (Prince Ex. 2.0, 7.0.) Mr. Prince declares that Plaintiff's counsel gave Defendant an extension to respond by October 29, 2025, but does not produce evidence that this agreement was made. (Prince decl., ¶ 15.) Exhibit 5, referenced by Mr. Prince is an October 15, 2025, email from Plaintiffs' counsel granting a two-week extension, without reference to discovery or a new deadline date.

Accordingly,

the motion is GRANTED.

C.

Lack of a separate statement.

Defendant

argues that Plaintiffs were required to serve a separate statement. The content of the responses are not at issue because there is no evidence that Defendant timely served verified responses at all.

D.

Sanctions are warranted.

Plaintiffs

request costs that include \$250 per hour for assistance in drafting each motion

as well as filing fees. As self-represented litigants, Plaintiffs cannot

recover "attorney's fees" but may recover costs that the litigant is liable to

pay for out-of-pocket legal services. (*Mix v. Tumanjan Development Corp.* (2002) 102 Cal.App.4th 1318, 1323.) A litigant in propria persona may recover attorney fees for the

legal services of assisting attorneys. (*Mix* at 1324.)

Accordingly,

the Court imposes sanctions of \$1,286 against Defendant, Citywide Management

and Consulting, Inc. for the motion to compel responses to form

interrogatories; \$1,286 for the motion to compel request for production of

documents set 1; and \$1,866 to prepare the motion re: documents requests two

and three.

#### V. CONCLUSION

Based

on the foregoing, all three of Plaintiffs' motions to compel responses without

objection is GRANTED. Defendant is ordered to serve verified responses to the

form interrogatories without objections, and verified responses to documents

requests two and three without objection, including production within 30 days.

Defendant

is ordered to pay sanctions to Plaintiff within 30 days as described above.